

Fiqh of Fasting

Fasting - كتاب الصوم

- Fasting linguistically means إمساك - to restrain
- Fasting in ramadan is فرض عين - individual obligation
- Who is **obligated** to fasting DURING Ramadan?
 - An adult
 - A muslim
 - A sane person
 - 4th condition - With knowledge of obligation of Ramadan
- Who is **obligated** to MAKE UP Ramadan?
 - The one who is too sick to fast - a choice
 - Mensuration or post birth bleeding - not permissible to fast
 - The one who is traveling (48 miles) - a choice
- Conditions of fasting in Ramadan, what makes it valid?
 - **Intention:** Intending to fast in a time when the intention is valid (before fajr) for Ramadan, for nafl you can make the intention to fast after fajr
 - **Bleeding:** women can't be in menstruation or postnatal bleeding
 - **Tahara:** Being in a state of major impurity (janaba, ejaculation) doesn't affect fasting. Just start fasting and make ghusul.
- **6 types of fasting**
 - **Fard** - the fast of ramadan, where if you don't do it it's punishable
 - **Wajib** -
 - Qadaa of Nafl fast broken on purpose
 - Fasting from a vow (نذر)
 - Attonement fasts (صيام الكفارات)
 - Breaking Ramadan fast on purpose, no excuse - 1 or 60 days
 - Having intercourse during the day intentionally - 60 days
 - Dhihar - 60 days
 - Breaking an oath - 3 days
 - Violating the state of ihram - specific violations
 - Accidental manslaughter - 60 days
 - **Masnoon** - Fasting on 10th of Muharram (with the 9th or 11th)
 - **Mandub** - encouraged, not sunnah
 - To fast for any three days of the month
 - The days of the full moon
 - Fasting monday and thursday

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- The 6 days of shawwal
- Day of arafah
- Fast of Dawud - every other day
- **Makruh** - generically there's an aspect of imitating another religion
 - Fasting ashurah on it's own
 - Fasting on saturday
 - Fasting 2 or more days without iftar
 - Fasting on the holiday of another religion
 - Some people say fasting only on Friday
- **Haram**
 - Days of Tashreeq
 - Eid Al Fitr
 - Eid Al Adha
- **The time of making niyyah for fasting**
 - Hanafis → before dhuhr; Other opinions → before fajr
 - **Simple rule** - If there is no external specifier then the intention has to be specific (e.g qadaa')
 - Automatically specified fasts: ramadan, oath fasts, nafl
 - No external specifier:
 - Making up a fast of ramadan
 - An oath that you didn't specify a time
 - Making up a nafl fast
 - Kaffara (expiation) fast
- **Moonsighting**
 - 3 methods of moonsighting to start ramadan
 - Naked eye
 - With a visual aid (camera, telescope)
 - If 30 days of shaaban passed
 - If it's cloudy or there's an obstruction: The start of ramadan needs the testimony of one man or woman
 - Conclusion: follow your community. Collective mistakes are pardoned.
 - **The end of ramadan**
 - Missing one day of ramadan means you didn't fulfill it
 - Needs either 2 men or one man and 2 women (scholars differed)
 - If it's not cloudy a lot of people must see the crescent moon

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- If you saw the start or end of Ramadan on your own and the qadhi rejects it, still fast out of caution.
- **Rulings of fasting in doubtful day**
 - The day after 29th of Shaaban - you don't know if it's the 30th Shaaban or 1st Ramadan
 - Prohibition of it is for people who add it onto ramadan, not because they're genuinely thinking it's Ramadan
 - The leader of an area will tell ppl to wait until the last moment you can make intention to fast to see if anyone saw the moon
- **Principles of breaking fast:**
 - صورة - physical form. The Surah of breaking your fast is the physical things you eat, **ingesting** and food reaching your stomach.
 - معنى - idea or concept, not physical. The Ma3na of breaking your fast is with something that gives you nutrients or energy.
 - **Kaffara**: surah AND ma3na both are broken on purpose.
 - **Qadaa fast**: if Surah OR ma3na are broken not on purpose.
 - **Principle**: things you don't have control over don't break your fast.
 - **Principle**: Anything with physical particles (not air) inhaled that enters your lungs breaks your fast (ex: need to use inhaler)
 - **Forgetting vs Mistakes**
 - نسيان - forgetting (you're fasting) - do qada
 - خطأ - something accidental but you know you're fasting - do qada
- **Doesnt break your fast (no surah or ma3na)**
 - Eating, drinking, or intercourse forgetfully
 - منفذ (passageways) - these passageways don't connect to the stomach
 - Skin
 - Dissolving on the tongue
 - Eyes
 - Ears
 - Backbiting - wasting your reward of fasting by backbiting
 - Intending to break fast - Hanafis only, Shafiis say it breaks and do qadaa
- **When is kaffara necessary with qadaa?**
 - When surah and ma3na are both violated, and it's on purpose
 - Examples: Taking medicine without a valid reason, drinking water, smoking
- **Conditions of kaffara**

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- Fast must be broken during ramadan
- Must break the fast intentionally (not accident or forgetting)
- The person didn't break their fast out of dire necessity
- The person wasn't forced to break their fast
- **When is only qadaa necessary?**
 - **Unifying rules**
 - **Anything that can be confusing**
 - **With a valid excuse** (pregnancy, sickness, menstruation)
 - **Violating either a sura or ma3na** (eating something that's not food)
- **Makruh for fasting**
 - **Unifying rule: things that come too close to breaking fast**
 - Examples: Chewing or tasting without need (a pencil), gathering saliva and swallowing it, excessive gargling
- **Things that aren't makruh**
 - **Unifying rule: something that looks like your fast is close to breaking but it's not actually**
 - Examples: Putting on oil or kohl, showering to cool down, using miswak
- **Mustahab for fasting**
 - Stopping eating a few minutes before fajr
 - Suhoor is mustahab
 - Hastening to break your fast at maghreb
 - Doing ghusul before fajr if you're in janaba
 - Protecting yourself from sins of the tongue
 - Fasting permissible desires (video games)
- **Valid excuses for to break fast**
 - Sickness
 - Near death from extreme hunger or thirst
 - Traveling
 - Pregnancy
 - Breastfeeding
 - Extremely elderly person
 - Someone in the battlefield (resident or traveler)
- **When is it mandatory to fulfill a vow (kaffara)**
 - **Makruh to take vows that are conditional with Allah**

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- Taking a vow on a **non-mandatory form of a mandatory ibadah** (ex: praying 100 nafl rakat)
- **Examples of non binding vows:** Sajda tilawah, visiting the sick, etc.
- **Valid oath but can't act on it:** I'll fast on eid if this happens
- Makruh to take vows, only take vows out of generosity

Itikaf - اعتكاف

- Linguistic definition - عكف - to stay in one place
- Ibadah definition- Staying in the masjid to do ibadah for a period of time
- Types of Itikaf
 - Wajib Itikaf - only if someone takes an oath
 - Sunnah Muakkadah Kifaaya - the last 10 nights of Ramadan
 - Mustahab Itikaf - any itikaf that's done outside of the 10 nights
- مدة الإعتكاف - the period of itikaf
 - For wajib itikaf it's only for how long you take the oath. Must fast during.
 - For sunnah itikaf - 10 days is the sunnah standard
 - Mustahaab itikaf - no minimum time. Can even be 20 minutes.
 - Hanafis say women can do itikaf in the masjid area of the home
- Invalidating itikaf
 - No tahara - menstruation
 - Intercourse
 - Leaving masjid without a valid reason
- Valid reasons to leave during itikaf
 - Natural necessities - bathroom, ghusul, wudu
 - Religious reasons - if there's no jumaa in the masjid youre in
 - Dire necessity - danger, sickness, the masjid is falling apart
- Definition of a masjid
 - The place that was specifically designated as a masjid.
 - Depends on the mathhab
- Etiquette
 - Can't bring the merchandise into the masjid itself.
 - It's permissible to eat in the masjid where normally it wouldnt be
 - Speaking wastefully
 - Picking the best masjid to do itikaf in - Mecca, Madina
 - To busy themselves in ibadah, salah on the Prophet SAW, Quran, etc.

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- Makruh
 - Selling in the masjid unnecessarily
 - To stay silent if the person believes that silence is ibadah.

Sadaqa Al Fitr - صدقة الفطر

- **Definition:** Money given to poor people at the end of Ramadan, before Eid salah, to fix the mistakes they made while fasting
- **Conditions to give it**
 - Muslim
 - A free person
 - To have enough wealth (nisab, threshold) to give zakat OR extra money
 - Age and sanity is NOT a condition.
- **When is it mandatory**
 - Hanafis say fajr of eid day, other mathahib say maghrib of the night before
- **Upon who is it mandatory** - Anyone you are financially responsible for.
 - A husband on the wife (differing opinions)
 - If someone's child is young and poor then they pay w their own wealth
 - If someone's child is young and wealthy they pay with the child's wealth
 - An adult child who is poor, the parent doesn't have to pay
 - An adult child who is insane or incapable of earning, the parent pays
- **Amount of sadaqa al fitr**
 - You can pay based on the value of your things for hanafis
 - For other mathahib, you have to pay using the actual wealth you have (maybe it's in dates, food, gold)
 - Modern day the amount is based on the cost of an average meal
 - Must give it to a **Muslim**